

9	Pinzon vs. Opes Investments Inc. 2025-01509447	Motion Determining that Plaintiff is a Consumer Plaintiff Daniel Pinzon’s “Motion for Order (1) Determining Plaintiff is a Consumer for Purposes of Arbitration; (2) Requiring Defendant to Bear all Arbitration Costs; or, in the alternative, (3) Declaring Arbitration Provision Unenforceable” is GRANTED in part. The court finds that moving plaintiff has sufficiently demonstrated he is entitled to “relie[f] from an order compelling arbitration due to ... inability to afford to initiate or continue arbitration proceedings.” (<i>Sanchez v. Superior Court</i> (2025) 108 Cal.App.5th 615, 630, citing <i>Roldan v. Callahan & Blaine</i> (2013) 219 Cal.App.4th 87; plaintiff’s supplemental declaration [ROA 69], ¶¶ 3-14, 17, 20, 22-24, and Ex. A-E thereto.) The court further finds that “financial status is not a result of the party's intentional attempt to avoid arbitration ...” (<i>Weiler v. Marcus & Millichap Real Estate Investment Services, Inc.</i> (2018) 22 Cal.App.5th 970, 981; ROA 69, ¶¶ 35, 38.) Accordingly, the court orders that the arbitration shall continue so long as defendant Opes Investment Inc. agrees to pay, or the arbitrator orders it to pay, all fees and costs of the arbitration; and (2) “if neither of those occur, the arbitration shall be deemed ‘had’ and the case may proceed in the superior court.” (<i>Weiler v. Marcus & Millichap Real Estate Investment Services, Inc.</i> , <i>supra</i> at 981.) The court sets a Status Conference re: Arbitration for January 8, 2027 at 8:30 a.m. in this department. At least five days prior, the parties shall file a joint statement as to the status of arbitration, including whether defendant Opes Investment Inc. agrees to pay, or the arbitrator orders it to pay, all fees and costs of the arbitration, and the current status of any arbitration proceedings at that time. Plaintiff shall give notice.
10	Rutledge vs. California Civil Rights Department 2026-01543235	Petition for Writ <i>Hearing vacated. Court set a hearing for 1/14/27. See minute order dated 9/23/26.</i>
11	Sanchez vs. Martinez	Motion to Contest Good Faith Settlement Defendant / cross-complainant Joseph Emanuel Martinez’